

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #16	CCRB Case #: 202106162	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Sunday, 10/03/2021 12:35 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/3/2023	Precinct: 114		
Date/Time CV Reported Sun, 10/03/2021 4:39 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/13/2021 10:54 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Christopher Busuttill	10488	960299	PSA 9
2. PO Jhovanny Ysabel	14828	943976	PSA 9
3. PO Andrew Cottone	14988	960398	PSA 9
4. LT Vivian Gavilanes	00000	949012	PSA 9

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Aldair Chirinogarcia	16086	967452	PSA 9
2. PO Ganesh Persaud	10796	949478	PSA 9
3. PO Johncarlos Dejesus	22900	969642	PSA 6

Officer(s)	Allegation	Investigator Recommendation
A . LT Vivian Gavilanes	Abuse: Lieutenant Vivian Gavilanes forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
B . PO Jhovanny Ysabel	Discourtesy: Police Officer Jhovanny Ysabel spoke discourteously to § 87(2)(b)	§ 87(2)(b)
C . PO Christopher Busuttill	Discourtesy: Police Officer Christopher Busuttill spoke discourteously to § 87(2)(b)	§ 87(2)(b)
D . PO Jhovanny Ysabel	Discourtesy: Police Officer Jhovanny Ysabel spoke discourteously to § 87(2)(b)	§ 87(2)(b)
E . PO Christopher Busuttill	Force: Police Officer Christopher Busuttill used physical force against § 87(2)(b)	§ 87(2)(b)
F . PO Jhovanny Ysabel	Force: Police Officer Jhovanny Ysabel used physical force against § 87(2)(b)	§ 87(2)(b)
G . PO Christopher Busuttill	Force: Police Officer Christopher Busuttill used physical force against § 87(2)(b)	§ 87(2)(b)
H . PO Andrew Cottone	Force: Police Officer Andrew Cottone used physical force against § 87(2)(b)	§ 87(2)(b)
I . PO Jhovanny Ysabel	Force: Police Officer Jhovanny Ysabel used physical force against § 87(2)(b)	§ 87(2)(b)
J . PO Jhovanny Ysabel	Discourtesy: Police Officer Jhovanny Ysabel spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
K . PO Jhovanny Ysabel	Off. Language: Police Officer Jhovanny Ysabel made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	
L . PO Christopher Busutil	Discourtesy: Police Officer Christopher Busutil spoke discourteously to § 87(2)(b)	
M . PO Christopher Busutil	Discourtesy: Police Officer Christopher Busutil spoke discourteously to § 87(2)(b)	
N . PO Christopher Busutil	Off. Language: Police Officer Christopher Busutil made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	

Case Summary

On October 3, 2021, Lieutenant Vivian Gavilanes of PSA 9 called the IAB Command Center and reported a level 2 use of force generating IAB log § 87(2)(b). The CCRB received this complaint on October 13, 2021.

On October 3, 2021, at 12:25 AM, § 87(2)(b) called 911 and reported that her son, § 87(2)(b) was being violent inside her apartment located at § 87(2)(b) in Queens. At 12:35 AM, Lt. Gavilanes, Police Officer Jhovanny Ysabel, Police Officer Christopher Busuttill, Police Officer Andrew Cottone, and additional officers, all of PSA 9, arrived at § 87(2)(b) and § 87(2)(b) let them inside her apartment. Lt. Gavilanes supervised the forcible removal of § 87(2)(b) to the hospital (**Allegation A – Abuse of Authority** – § 87(2)(g)).

While being removed to the hospital, PO Ysabel spoke discourteously to § 87(2)(b) (**Allegation B – Discourtesy** – § 87(2)(g)). § 87(2)(b) jumped on top of § 87(2)(b) and prevented the officers from taking him to the hospital. The officers approached § 87(2)(b) and § 87(2)(b) and § 87(2)(b) pushed PO Ysabel. PO Busuttill spoke discourteously to § 87(2)(b) (**Allegation C – Discourtesy** – § 87(2)(g)). PO Ysabel spoke discourteously to § 87(2)(b) (**Allegation D – Discourtesy** – § 87(2)(g)). PO Busuttill used physical force to remove § 87(2)(b) off of § 87(2)(b) (**Allegation E – Force** – § 87(2)(g)). PO Ysabel, PO Busuttill, and PO Cottone used physical force to handcuff § 87(2)(b) (**Allegation F to H – Force** – § 87(2)(g)). While handcuffing § 87(2)(b) PO Ysabel allegedly stomped on his foot (**Allegation I – Force** – § 87(2)(g)).

After § 87(2)(b) was handcuffed, he was escorted to the ambulance by PO Ysabel and PO Busuttill. While being escorted, PO Ysabel used offensive language towards § 87(2)(b) (**Allegations J and K – Discourtesy and Offensive Language** – § 87(2)(g)). PO Busuttill spoke discourteously to § 87(2)(b) (**Allegation L – Discourtesy** – § 87(2)(g)). While in the elevator, PO Ysabel spoke discourteously to § 87(2)(b) (**subsumed within Allegation B**). PO Busuttill spoke discourteously and used offensive language towards § 87(2)(b) (**Allegations M and N – Discourtesy and Offensive Language** – § 87(2)(g)). Once § 87(2)(b) was placed into the ambulance, PO Ysabel spoke discourteously to him (**subsumed within Allegation B**).

This case was originally assigned to Investigator Santosh Prakash and upon his departure from the CCRB the case was reassigned to Investigator Edward Tsigel on September 20, 2022.

The CCRB received seven Body Worn Camera (BWC) videos of this incident (BR 08).

There was no arrest made or summons issued as a result of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Lieutenant Vivian Gavilanes forcibly removed § 87(2)(b) to the hospital.

It is undisputed that on October 3, 2021, at 12:25 AM, § 87(2)(b) called 911 and reported that her son, § 87(2)(b) (BR 01), was being violent inside her apartment located at § 87(2)(b). § 87(2)(b) girlfriend, § 87(2)(b) was also present inside the apartment. At 12:35 AM, Lt Gavilanes, PO Ysabel (BR 03, 04), PO Busuttill (BR 05, 06), PO Cottone (BR 07), additional officers, and EMTs all arrived at § 87(2)(b) and § 87(2)(b) let them inside her apartment. § 87(2)(b) escorted the officers and EMTs to § 87(2)(b) room. The officers asked § 87(2)(b) to go to the hospital with them multiple times and he refused each time. The officers eventually entered his room and forcibly removed him to § 87(2)(b) Medical Center.

PO Ysabel (BR 03, 04), PO Busuttill (BR 05, 06), and PO Cottone (BR 07), stated that the EMTs spoke to § 87(2)(b) and § 87(2)(b) and made the decision that he needed to go to the hospital. The officers informed § 87(2)(b) that the EMTs said he needed to go to the hospital, and he continuously refused to go with them. Therefore, the officers handcuffed him and

escorted him to the ambulance.

Lt. Gavilanes was not interviewed because the investigation was able to make a determination without her statement.

At 3:10 of PO Cottone's BWC video (BR 08), the officers arrive at § 87(2)(b) apartment, and she lets them in. She tells them that § 87(2)(b) was "not himself for two weeks, talking to himself, (crying or climbing) on the bed, and screaming. The officers walk to § 87(2)(b) room where he and § 87(2)(b) are. At 4:50 of PO Busuttill's BWC (BR 08), § 87(2)(b) asks the officers to wait until EMTs arrive before entering the room because she does not want him to get scared by the officers. At 6:45, EMTs arrive to the scene, enter § 87(2)(b) room and speak to him. At 7:15, § 87(2)(b) tells PO Busuttill, "They have to take him, I can't handle him ... to the hospital." At 7:25, an EMT exits § 87(2)(b) room and says that § 87(2)(b) refuses to talk to them. § 87(2)(b) explains that § 87(2)(b) was screaming and jumping on the bed. The EMT asks her if he has a medical history, and she says that he has a mental illness and ADD. The EMT asks if he has schizophrenia and she said that she doesn't know but he is giving signs that he does because he is talking to people who are not there. The EMT then asks § 87(2)(b) if she wants them to take him to "14" or "32." It is unclear what the EMT meant by 14 and 32. § 87(2)(b) says she wants them to take him to § 87(2)(b) hospital and the EMT says okay.

From 18:00 to 23:00 of PO Ysabel's BWC video (BR 08) the officers remove § 87(2)(b) from his room and bring him to an ambulance outside. From 23:00 to 26:17, § 87(2)(b) is transported to the hospital.

The AIDED report (BR 09) is consistent with the officers' testimonies and states that § 87(2)(b) was transported to § 87(2)(b) Medical Center as an emotionally disturbed person (EDP).

Patrol Guide Procedure 216-01 (BR 10) states that in any occurrence which requires that a person, other than a prisoner, receive medical aid or assistance including but not limited to, individuals who are mentally ill, officers must cooperate with and assist ambulance/hospital personnel in every reasonable manner.

Lt. Gavilanes was the supervisor at the scene; therefore, this allegation is being pled against her. EMS was automatically dispatched to the scene when § 87(2)(b) reported that her son was being violent. BWC footage shows that EMTs made the decision to remove § 87(2)(b) to the hospital as they spoke with § 87(2)(b) in the presence of police officers. § 87(2)(g)

Allegation (B) Discourtesy: Police Officer Jhovanny Ysabel spoke discourteously to § 87(2)(b).

Although this was not alleged by § 87(2)(b) BWC footage captured PO Ysabel using profanities towards § 87(2)(b)

At 18:50 of PO Ysabel's BWC video (BR 08), he enters into § 87(2)(b) room and the officers tell him that he is going to the hospital, and he responds that he isn't going anywhere. At 19:05, § 87(2)(b) balls up his right fist near his body and tells PO Ysabel "Touch me, I dare you." PO Ysabel responds, "You better use that fist motherfucker, let's go." § 87(2)(b) does not lift his arm or indicate in any way that he intends to strike PO Ysabel. At 20:45, the officers escort § 87(2)(b) into the elevator to exit the building and go to the ambulance. While entering the elevator, PO Ysabel tells § 87(2)(b) to "face the wall and don't fucking move." He then says, "You're on fucking time out, motherfucker." At 22:50, PO Ysabel enters the ambulance, where § 87(2)(b) is on the stretcher. § 87(2)(b) tells the EMT that PO Ysabel stomped on his foot. PO Ysabel responds, "Shut the fuck up." § 87(2)(b) then tells PO Ysabel, "No, you shut the fuck up. If you're going to say that to me, get the fuck off this bus."

PO Ysabel (BR 03, 04) stated that when inside the room, § 87(2)(b) was not complying with the officers by refusing to go to the hospital and he used the profanity to gain

compliance from him. He stated that he was unable to gain his compliance using “normal words.” At that moment, he believed that § 87(2)(b) was a physical threat to him because he had his fist balled up. He stated that he used the profanities in the elevator because § 87(2)(b) was passively resisting the officers by going limp when the officers were escorting him and because he made the officers go through the entire incident for nothing. He also stated that when he was inside the ambulance, he said “shut the fuck up” to himself and was thinking out loud because he was frustrated about the situation. He said that the statement was not directed towards § 87(2)(b) and that he only happened to hear it because he was in the vicinity.

Patrol Guide Procedure 200-02 (BR 11) states that officers are to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect.

According to **DCT case No. 2018-18951** (BR 12), officers have a responsibility to act with decorum in their interactions with civilians, though certain situations where profane remarks are made during a stressful or chaotic situation do not constitute misconduct.

§ 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g) When PO Ysabel told § 87(2)(b) to not “fucking” move, that he was on “fucking” time out, and called him a “motherfucker” in the elevator, § 87(2)(b) was handcuffed and surrounded by three police officers. § 87(2)(g)
§ 87(2)(g). When PO Ysabel told § 87(2)(b) to “shut the fuck up” in the ambulance, he was handcuffed and strapped to a stretcher inside the ambulance. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Allegation (C) Discourtesy: Police Officer Christopher Busuttill spoke discourteously to § 87(2)(b).

Allegation (D) Discourtesy: Police Officer Jhovanny Ysabel spoke discourteously to § 87(2)(b).

Although § 87(2)(b) did not allege this in his statement, BWC footage showed PO Busuttill and PO Ysabel using profanities.

At 19:15 of PO Ysabel’s BWC video (BR 08), PO Ysabel and PO Busuttill approach § 87(2)(b) to remove him to the hospital. § 87(2)(b) gets on top of § 87(2)(b) to prevent the officers from taking him. PO Ysabel tells her to move, and she does not comply. PO Ysabel and PO Busuttill attempt to move her off § 87(2)(b) with their hands, but she still does not comply. At 19:25, § 87(2)(b) pushes PO Ysabel’s chest away from him with his left arm. PO Ysabel and PO Busuttill grab § 87(2)(b) and attempt to physically remove her from § 87(2)(b). At 19:30, PO Busuttill tells § 87(2)(b) “Are you fucking kidding me, get the fuck up,” and at 19:35, PO Ysabel tells § 87(2)(b) to “move out of the fucking way,” while they are physically struggling to get § 87(2)(b) off § 87(2)(b).

PO Busuttill (BR 03, 04) did not have any recollection of saying, “Are you fucking kidding me, get the fuck up,” to § 87(2)(b). PO Busuttill was shown his own BWC footage (BR 08) and PO Cottone’s BWC footage (BR 08) of him making that statement. He stated that it sounded like it was his voice that made the statement, but he was not certain, and could not speak to the statement.

PO Ysabel (BR 03, 04) stated that he told § 87(2)(b) to “move out of the fucking way” to get § 87(2)(b) off § 87(2)(b) because she was continuously physically preventing the officers from removing § 87(2)(b) to the hospital.

Patrol Guide Procedure 200-02 (BR 11) states that officers are to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect.

According to **DCT case No. 2018-18951** (BR 12), officers have a responsibility to act with decorum in their interactions with civilians, though certain situations where profane remarks are made during a stressful or chaotic situation do not constitute misconduct.

While PO Busuttil did not recall making the above-mentioned statement and did not recognize his voice in the BWC, based on the audio and PO Busuttil's statement, the investigation determined that PO Busuttil said, "Are you fucking kidding me, get the fuck up."

§ 87(2)(g)

Allegation (E) Force: Police Officer Christopher Busuttil used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Jhovanny Ysabel used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Christopher Busuttil used physical force against § 87(2)(b)

Allegation (H) Force: Police Officer Andrew Cottone used physical force against § 87(2)(b)

Allegation (I) Force: Police Officer Jhovanny Ysabel used physical force against § 87(2)(b)

§ 87(2)(b) (BR 01) stated that when the officers entered his room and attempted to remove him to the hospital, he balled up his fist because he was upset and did not want to go to the hospital. § 87(2)(b) pulled him backwards to prevent him from advancing towards the officers. PO Busuttil, PO Ysabel, and PO Cottone approached them and "tackled" § 87(2)(b) onto the bed. In the process they knocked § 87(2)(b) off the bed which caused her to stumble back and crash into furniture. § 87(2)(b) stated that he resisted the officers while they struggled to place him in handcuffs. He did not specify how he resisted the officers or how they struggled to handcuff him. After he was handcuffed by the officers, PO Ysabel "stomped" on his left foot causing him pain. § 87(2)(b) left foot was injured prior to this incident and was in a cast at the time of this incident.

§ 87(2)(b) (BR 02) stated that when she saw § 87(2)(b) ball his fists, she grabbed him and held him down in an attempt to calm him down. Simultaneously, the officers approached them and attempted to separate them. PO Busuttil grabbed § 87(2)(b)'s hair and feet, lifted her, and "flung" her off the bed which caused her to crash into a table with her head. She stated that this caused her earrings to fall out and made her ear lobes bleed.

PO Busuttil (BR 05, 06) stated when the officers approached § 87(2)(b) and § 87(2)(b), he and Lt. Gavilanes moved § 87(2)(b) off § 87(2)(b) so that they could handcuff him. He pulled § 87(2)(b) away from § 87(2)(b) while she held onto § 87(2)(b). § 87(2)(b) lost her grip of § 87(2)(b) stumbled backwards, and fell to the ground and into a children's playhouse. He denied that he pushed her to the ground or that she was injured in any way as a result of falling.

PO Ysabel (BR 03, 04), PO Busuttil (BR 05, 06), and PO Cottone (BR 07), all stated that

after they removed § 87(2)(b) off § 87(2)(b) by prying her arms off of him and pulling her away from him. They pulled § 87(2)(b) hands behind his back and handcuffed him because he was resisting the officers by flailing his arms. After approximately one minute they grabbed his arms, put them behind his back, and handcuffed him. They stated that there was no additional force used to handcuff § 87(2)(b) other than placing his hands behind his back. They denied that they ever punched, kicked, or hit § 87(2)(b) nor did they stomp on § 87(2)(b) foot or saw any other officer do so.

PO Ganesh Persaud of PSA 9 was also present during this incident. At 19:55 of PO Persaud's BWC video (BR 08), officers enter § 87(2)(b) room. § 87(2)(b) pushes PO Ysabel. At 20:05, PO Ysabel and PO Busuttill pick § 87(2)(b) up and stand her up. PO Busuttill pulls her away from § 87(2)(b) while she continues to hold onto him. At 20:15, § 87(2)(b) loses grip of § 87(2)(b) and stumbles backwards. She falls backwards into a folded table and ends up in a sitting position. At 20:20, she immediately stands up, yells § 87(2)(b) this is what you did" and runs out of the room. It does not appear that § 87(2)(b) is injured.

At 19:50, of PO Cottone's BWC video (BR 08), the officers approach § 87(2)(b) and remove her off § 87(2)(b). At 19:57, it appears that PO Ysabel and PO Busuttill push § 87(2)(b) onto the bed and then they pull him up with his hands behind his back. At 20:10, PO Cottone grabs § 87(2)(b) arms and handcuffs them while PO Ysabel and PO Busuttill hold onto him.

Between 22:50 and 23:10 of PO Ysabel's BWC (BR 08), § 87(2)(b) tells the EMT inside the ambulance that PO Ysabel stomped on his foot multiple times.

While the other BWC videos (BR 08) are consistent with PO Persaud's and PO Cottone's BWC videos and capture additional angles, the footage does not capture the entirety of every officer's actions and force used. At no point throughout any of the footage does PO Busuttill or any other officer throw or push § 87(2)(b) onto the ground or anywhere else. § 87(2)(b) falls backwards after being pulled away from § 87(2)(b) and losing her grip of him. At no point is any officer seen tackling or striking § 87(2)(b) at any point. PO Ysabel is not seen stepping on § 87(2)(b) foot at any point; however, BWC footage does not completely capture the feet of § 87(2)(b) and the officers involved in handcuffing him the entire time.

Patrol Guide Procedure 221-02 (BR 13) officers must apply no more than the reasonable force necessary to gain control, assessing the situation continually and adjusting the use of force as necessary.

§ 87(2)(g)

It is undisputed that § 87(2)(b) refused to go to the hospital and that when the officers approached him, he pushed them. They tried to handcuff him, and he physically resisted by pulling his arms away from them. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (J) Discourtesy: Police Officer Jhovanny Ysabel spoke discourteously to § 87(2)(b).

Allegation (K) Offensive Language: Police Officer Jhovanny Ysabel made remarks to § 87(2)(b) based upon the gender of § 87(2)(b).

Allegation (L) Discourtesy: Police Officer Christopher Busuttil spoke discourteously to § 87(2)(b).

Although this was not alleged by § 87(2)(b) BWC footage showed PO Ysabel making an offensive remark against § 87(2)(b) and PO Busuttil using profanities.

At 20:20 of PO Cottone's BWC (BR 08) video, the officers handcuff § 87(2)(b) and PO Cottone says, "He's good" multiple times to the other officers. The officers begin to escort him out of his room while he is crying. PO Ysabel says, "Oh you're crying now you little bitch." PO Busuttil says, "You think you're so fucking tough yea? You want to fight us?"

PO Ysabel (BR 03, 04) and PO Busuttil (BR 05, 06) both stated that they did not have any recollection of making the statements mentioned above. PO Ysabel and PO Busuttil were shown PO Cottone's BWC footage (BR 08) of them making those statements. They both stated that they did not recognize the voices and could not tell from the footage whether it was their voices that made those statements.

Patrol Guide Procedure 200-02 (BR 11) states that officers are to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect.

Administrative Guide 304-06 (BR 14) states that officers are prohibited from making discourteous or disrespectful remarks regarding another person's gender.

While PO Ysabel and PO Busuttil did not recall making the above-mentioned statements and did not recognize the voices in the BWC as their own, based on the audio and absent their denial of the allegations, the investigation determined by a preponderance of the evidence that they are the subject officers.

At the time PO Ysabel and PO Busuttil made the statements mentioned above to § 87(2)(b) he was handcuffed and surrounded by seven police officers. § 87(2)(g)

Allegation (M) Discourtesy: Police Officer Christopher Busuttil spoke discourteously to § 87(2)(b).

Allegation (N) Offensive Language: Police Officer Christopher Busuttil made remarks to § 87(2)(b) based upon the gender of § 87(2)(b).

Although this was not alleged by § 87(2)(b) BWC footage showed PO Busuttil making an offensive remark and using a profanity towards § 87(2)(b)

At 21:50 of PO Cottone's BWC (BR 08) video, while the officers are exiting the elevator § 87(2)(b) says, "You better use those tasers, watch." PO Busuttil responds, "Yea, real fucking tough, you were just crying, bitch." The officers then escort § 87(2)(b) out of the building and put him in the ambulance.

PO Busuttil (BR 05, 06) stated that he did not have any recollection of making the statement mentioned above. PO Busuttil was shown PO Cottone's BWC footage of him making the statement. He did not recognize the voice and could not tell from the footage whether it was his

voice that made the statement.

Patrol Guide Procedure 200-02 (BR 11) states that officers are to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect.

Administrative Guide 304-06 (BR 14) states that officers are prohibited from making discourteous or disrespectful remarks regarding another person's gender.

While PO Busuttil did not recall making the above-mentioned statement and did not recognize his voice in the BWC, the investigation compared the voice heard throughout his BWC and his CCRB interview to the discourteous statement made and determined that the voice matched, and he was the officer who made the discourteous statement.

At the time PO Busuttil made the statements mentioned above to § 87(2)(b) he was handcuffed and surrounded by three police officers in the elevator. § 87(2)(g)

§ 87(2)(g)
§ 87(2)(g)
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§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 15).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 16).
- Lieutenant Vivian Gavilanes has been a member of service for twelve years and has been a subject in one other CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- Police Officer Jhovanny Ysabel has been a member of service for fifteen years and has been a subject in six CCRB complaints and sixteen allegations, of which one was substantiated:
 - 200905170 involved a substantiated allegation of a question against PO Ysabel. The Board recommended charges and the NYPD did not impose discipline.
- Police Officer Christopher Busuttil has been a member of service for six years and has been a subject in one other CCRB complaint and two allegations, which were not substantiated. § 87(2)(g)
- Police Officer Andrew Cottone has been a member of service for six years and has been a subject in one other CCRB complaint and two allegations, which were not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 1, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 17).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 16

Investigator: Inv. Tsigel Investigator Edward Tsigel 12/07/2022
Signature Print Title & Name Date

Squad Leader: Patrick Yu IM Patrick Yu 12/07/2022
Signature Print Title & Name Date

Reviewer:

Signature

Print Title & Name

Date